

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

CASE OF PAPULIN AND OTHERS v. RUSSIA

(Applications nos. 40133/21 and 43 others –
see appended list)

JUDGMENT

STRASBOURG

11 April 2024

This judgment is final but it may be subject to editorial revision.



In the case of Papulin and Others v. Russia,

The European Court of Human Rights (First Section), sitting as a Committee composed of:

Lətif Hüseynov*, President*,
Ivana Jelić,
Erik Wennerström*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 21 March 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also raised other complaints under the provisions of the Convention and its Protocol.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. *LOCUS STANDI* IN APPLICATION No. 41953/21

7. Following the death of the applicant, Ms Bondarenko (application no. 41953/21), her daughter, Ms Elena Vladimirovna Pikalova, expressed her wish to pursue the application on behalf of the deceased applicant (see the appended table).

8. The Court reiterates that where an applicant dies during the examination of a case, his or her heirs or close relatives may in principle pursue the application on his or her behalf (see *Ječius v. Lithuania*, no. 34578/97, § 41, ECHR 2000-IX, and concerning, more specifically, complaints under Article 11 of the Convention, *Savenko and Others v. Russia*, no. 13918/06, § 52, 14 September 2021, and references cited therein). In the present case, the applicant's daughter submitted documents confirming that she was the applicant's heir. In these circumstances, the Court considers that Ms Pikalova has a legitimate interest in pursuing the application in place of her late mother.

9. In the light of the above, the Court accepts that Ms Pikalova has a legitimate interest in pursuing the application in place of her deceased mother. It will therefore continue to deal with the case at her request. For convenience, however, it will continue to refer to Ms Bondarenko as the applicant in the present judgment.

IV. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

10. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

11. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

12. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

13. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant

case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

14. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

V. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

15. The applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

16. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocol in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); and *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention.

VI. REMAINING COMPLAINTS

17. Some applicants raised further additional complaints under Article 6 of the Convention concerning the fairness of the administrative-offence proceedings. In view of the findings in paragraphs above, the Court considers that there is no need to deal separately with these remaining complaints.

VII. APPLICATION OF ARTICLE 41 OF THE CONVENTION

18. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Holds* that Ms Pikalova, the daughter of the applicant, Ms Bondarenko, in application no. 41953/21, has a legitimate interest in pursuing the application in place of her late mother;

4. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

5. *Holds* that these applications disclose a breach of Article 11 of the Convention;

6. *Holds* that there has been a violation of the Convention and the Protocol thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

7. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 11 April 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Lətif Hüseynov
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]
1.	40133/21 28/07/2021	**Aleksey Mikhaylovich PAPULIN** 1992	Memorial Human Rights Centre Moscow	Manifestation in support of Navalnyy Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention of 4 days	Moscow City Court 03/02/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 11.45 a.m. on 31/01/2021 to 2 p.m. on 01/02/2021 for the purpose of drawing up a record of administrative offence and bringing the applicant to the court hearing of his case on 01/02/2021, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 03/02/2021, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant on 01/02/2021 was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	5,000
2.	40135/21 28/07/2021	**Dmitriy Vladimirovich GORBACHEV** 1988	Memorial Human Rights Centre Moscow	Manifestation in support of Navalnyy Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention of 5 days	Moscow City Court 10/02/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 3 p.m. on 31/01/2021 to 11 p.m. on 01/02/2021 for the sole purpose of drawing up an administrative offence record, no evidence that it could not have been done on the spot, held in detention after drawing up an administrative offence record, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 10/02/2021,	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]
								Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the applicant started serving his sentence – administrative detention – before the appeal judgment was delivered	
3.	40158/21 27/07/2021	**Roman Andreyevich BORDUNOV** 1993	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation in support of Navalnyy Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention of 13 days	Moscow City Court 09/02/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 3 p.m. on 31/01/2021 to 6 p.m. on 01/02/2021 for the sole purpose of drawing up an administrative offence record, no evidence that it could not have been done on the spot, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 09/02/2021	5,000
4.	40194/21 27/07/2021	**Oleg Vladimirovich LITVISHKO** 1984	Aksenova Darya Dmitriyevna Kolomna	Manifestation in support of Navalnyy Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention of 10 days	Moscow City Court 18/03/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 2.25 p.m. on 31/01/2021 to 02/02/2021 until the court hearing for the sole purpose of drawing up an administrative offence record, no evidence that it could not have been done on the spot, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 18/03/2021	5,000
5.	40197/21 27/07/2021	**Anna Alekseyevna GRIGORYEVA** 2000	Shindyapin Arkadiy Vitalyevich Moscow	Manifestation in support of Navalnyy Moscow 02/02/2021	article 20.2 § 6.1 of CAO	administrative detention of 5 days	Moscow City Court 05/02/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 11.45 p.m. on 02/02/2021 to 03/02/2021 for the sole purpose of drawing up a record of administrative offence and for bringing the applicant to the court hearing of her case on 03/02/2021, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 05/02/2021,	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]
								Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant on 03/02/2021 was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	
6.	40322/21 27/07/2021	**Dmitriy Alekseyevich LOMP** 1990	Aksenova Darya Dmitriyevna Kolomna	Manifestation in support of Navalnyy Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention of 14 days	Moscow City Court 12/02/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 3 p.m. on 31/01/2021 to 01/02/2021 for the sole purpose of drawing up an administrative offence record and for bringing the applicant to the court hearing, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 12/02/2021	5,000
7.	40464/21 27/07/2021	**Yaroslav Ivanovich IVANOV** 1982	Aksenova Darya Dmitriyevna Kolomna	Manifestation in support of Navalnyy Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 18/03/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 12.25 p.m. to unspecified time on 31/01/2021 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence, raised on appeal Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 18/03/2021	4,000
8.	40511/21 30/07/2021	**Alena Vladimirovna KUZINA** 1999	Pershakova Yelena Yuryevna Moscow	Manifestation in support of Navalnyy Moscow 02/02/2021	article 20.2 § 6.1 of CAO	administrative detention of 4 days	Moscow City Court 05/02/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 9 p.m. on 02/02/2021 to 3.30 p.m. on 03/02/2021 in excess of 3 hours for the purpose of drawing up a record of administrative offence and for bringing the applicant to the court hearing, raised on appeal,	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]
								Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 05/02/2021, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant on 03/02/2021 was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	
9.	41202/21 02/08/2021	**Maksim Yuryevich IZHEDEROV** 1996	Eysmont Mariya Olegovna Moscow	Manifestation in support of Navalnyy Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention of 10 days	Moscow City Court 04/02/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 5.10 p.m. on 31/01/2021 to 4.50 p.m. on 01/02/2021 for the sole purpose of drawing up an administrative offence record, no evidence that it could not have been done on the spot, held in detention after drawing up an administrative offence record and until the court hearing, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 04/02/2021	5,000
10.	41233/21 06/08/2021	**Ivan Mikhaylovich SHCHAPOV** 1999	Memorial Human Rights Centre Moscow	Manifestation in support of Navalnyy Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention of 7 days	Moscow City Court 08/02/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 08/02/2021, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant on 01/02/2021 was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]
11.	41245/21 25/07/2021	**Tatyana Ivanovna KOVRIZHNYKH** 1999	Memorial Human Rights Centre Moscow	Manifestation in support of Tsvetkova Moscow 27/06/2020	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 26/01/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 4.38 p.m. to 11.19 p.m. on 27/06/2020 for the sole purpose of drawing up an administrative offence record, no evidence that it could not have been done on the spot, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 26/01/2021	4,000
12.	41495/21 23/07/2021	**Yevgeniya Andreyevna FROLOVA** 1987		Manifestation in support of Navalnyy Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention of 10 days	Moscow City Court 03/02/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 5.15 p.m. on 31/01/2021 to 6 p.m. on 01/02/2021 for drawing up a record of administrative offence and for bringing the applicant to the court hearing, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 03/02/2021	5,000
13.	41680/21 09/08/2021	**Fedor Ivanovich MALYSHEV** 1996		Manifestation in support of Navalnyy Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention of 10 days	Moscow City Court 09/02/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest from 2.45 p.m. on 31/01/2021 to 3 p.m. on 01/02/2021 for the sole purpose of drawing up a record of administrative offence and for bringing the applicant to the court hearing, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 09/02/2021	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]
14.	41953/21 30/07/2021	**Valentina Yuryevna BONDARENKO** Born in 1958 Deceased in 2022 Heir: Pikalova Elena Vladimirovna 1987	Memorial Human Rights Centre Moscow	Manifestation in support of Navalnyy Pyatigorsk 31/01/2021	article 20.2.2 § 1 of CAO	administrative detention of 1 day	Stavropol Regional Court 31/03/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 11.30 a.m. on 31/01/2021 to 5.00 p.m. on 01/02/2021 for the sole purpose of drawing up an administrative offence record, no evidence that it could not have been done on the spot, held in detention after drawing up an administrative offence record, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Stavropol Regional Court, 31/03/2021, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the applicant started serving his sentence – administrative arrest – before the appeal judgment was delivered	5,000, to be paid to the applicant's heir, Ms Elena Vladimirovna Pikalova
15.	42464/21 05/08/2021	**Nikolay Yuryevich KABALIN** 1996	Memorial Human Rights Centre Moscow	Manifestation in support of Navalnyy Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention of 5 days	Moscow City Court 11/02/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 3.14 p.m. on 31/01/2021 to 7.35 p.m. on 01/02/2021 for the sole purpose of drawing up an administrative offence record, no evidence that it could not have been done on the spot; held in detention after drawing up an administrative offence record, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 11/02/2021, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the applicant started serving his sentence – administrative arrest – before the appeal judgment was delivered	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]
16.	42467/21 05/08/2021	**Dmitriy Olegovich PETELIN** 1999	Memorial Human Rights Centre Moscow	Manifestation in support of Navalnyy Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention of 11 days	Moscow City Court 05/02/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 2.10 p.m. on 31/01/2021 to 2.45 p.m. on 01/02/2021 for the sole purpose of drawing up an administrative offence record, no evidence that it could not have been done on the spot, held in detention after drawing up an administrative offence record, raised on appeal, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the applicant started serving his sentence – administrative detention – before the appeal judgment was delivered	5,000
17.	42982/21 16/08/2021	**Oleg Igorevich KRYZHANOVSKIY** 1989	Zhdanov Ivan Yuryevich Vilnius	Manifestation in support of Navalnyy Lipetsk 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Lipetsk Regional Court 25/02/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest at 12.25 p.m. on 31/01/2021 for the sole purpose of drawing up an administrative offence record, no evidence that it could not have been done on the spot, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Lipetsk Regional Court, 25/02/2021	4,000
18.	43275/21 09/08/2021	**Dmitriy Mikhaylovich KOZLOV** 1992	Zyryanova Mariya Sergeyevna St Petersburg	Manifestation in support of Navalnyy St Petersburg 23/01/2021	article 20.2 § 6.1 of CAO	administrative detention of 10 days	St Petersburg City Court 11/02/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 7.20 p.m. on 23/01/2021 to the day of court hearing on 24/01/2021 for the sole purpose of drawing up an administrative offence record, no evidence that it could not have been done on the spot, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: St Petersburg City Court, 11/02/2021,	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]
								Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The applicant started serving his sentence – administrative detention – before the appeal judgment was delivered	
19.	43854/21 10/08/2021	**Fedor Igorevich KIRILLOV** 1998	Memorial Human Rights Centre Moscow	Manifestation in support of Navalnyy Moscow 02/02/2021 Manifestation against the war in Ukraine Moscow 06/03/2022	article 20.2 § 6.1 of CAO article 20.2 § 5 of CAO	administrative detention of 10 days fine of RUB 10,000	Moscow City Court 10/02/2021 Moscow City Court 17/10/2022	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 11.20 p.m. on 02/02/2021 to 11.20 a.m. on 03/02/2021 and from 4.25 p.m. to 10.31 p.m. on 06/03/2022 for the sole purpose of drawing up an administrative offence record, no evidence that it could not be done on spot, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 10/02/2021, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the applicant started serving his sentence – administrative detention – before the appeal judgment was delivered, proceedings ended on 10/02/2021 in the Moscow City Court	5,000
20.	45034/21 03/09/2021	**Vladimir Valentinovich FILIPPENKO** 1981	Zhdanov Ivan Yuryevich Vilnius	Manifestation in support of Navalnyy Magnitogorsk 31/01/2021	article 19.3 § 1 of CAO	fine of RUB 1,000	Chelyabinsk Regional Court 18/03/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 12.20 p.m. on 31/01/2021 to 11.05 a.m. on 01/02/2021 for the sole purpose of drawing up a record of administrative offence and bringing the applicant to the court hearing, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Altay Regional Court, 18/03/2021	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]
21.	45065/21 01/09/2021	**Sergey Mikhaylovich KOBELEV** 1979	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation in support of Navalnyy Barnaul 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Altay Regional Court 18/03/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 12.15 p.m. on 31/01/2021 to 01/02/2021 until the court hearing for the sole purpose of drawing up an administrative offence record, no evidence that it could not be done on spot, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Altay Regional Court, 18/03/2021	4,000
22.	45703/21 19/08/2021	**Raira Georgiyevna BAZMANI** 2002		Manifestation in support of Navalnyy Nizhniy Novgorod 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 5,000	Nizhniy Novgorod Regional Court 23/06/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 12.30 p.m. to 7.30 p.m. on 31/01/2021 in excess of 3 hours for the sole purpose of drawing a record of administrative offence, no evidence that it could not be done on spot, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Nizhniy Novgorod Regional Court, 23/06/2021	4,000
23.	46693/21 03/09/2021	**Viktor Yevgenyevich LEVAKOV** 1966	Aksenova Darya Dmitriyevna Kolomna	Manifestation in support of Navalnyy Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 20/04/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 6.15 p.m. on 23/01/2021 to 0.50 a.m. on 24/01/2021 in excess of 3 hours for the sole purpose of drawing a record of administrative offence, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 20/04/2021	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]
24.	46997/21 15/09/2021	**Yegor Yevgenyevich BYCHENKOV** 2002	Zhdanov Ivan Yuryevich Vilnius	Manifestation in support of Navalnyy Vladimir 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Vladimir Regional Court 23/03/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 3 p.m. on 23/01/2021 to 2.50 p.m. on 25/01/2021 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Vladimir Regional Court, 23/03/2021	4,000
25.	47516/21 15/09/2021	**Stanislav Andreyevich BUGAYEV** 1994	Markin Konstantin Aleksandrovich Velikiy Novgorod	Manifestation in support of Navalnyy Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention of 10 days	Moscow City Court 18/03/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 3 p.m. on 31/01/2021 to 2.19 p.m. on 01/02/2021 for the sole purpose of drawing up a record of administrative offence and bringing the applicant to the court hearing, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 18/03/2021, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant on 01/02/2021 was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	5,000
26.	47649/21 15/09/2021	**Elvira Nikolayevna KUDRYASHOVA** 1964	Protasov Vladimir Yuryevich Yoshkar - Ola	Manifestation in support of Navalnyy Yoshkar-Ola 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 5,000	Supreme Court of the Mariy El Republic 17/03/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 12.10 p.m. on 31/01/2021 to 02/02/2021 until the court hearing for the purpose of drawing a record of administrative offence and bringing the applicant to the court hearing, raised on appeal	4,000

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				Manifestation in support of Navalnyy Yoshkar-Ola 31/01/2021	article 19.3 § 1 of CAO	fine of RUB 500	Supreme Court of the Mariy El Republic 18/03/2021		
27.	48188/21 28/09/2021	**Yefrosinya Sergeyevna KHARCHENKO** 1998		Manifestation in support of Navalnyy Moscow 02/02/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 02/04/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 11.50 p.m. on 02/02/2021 till 3.59 a.m. on 03/02/2021 for the sole purpose of drawing up an administrative offence record, no evidence that it could not have been done on the spot, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 02/04/2021	4,000
28.	49382/21 22/09/2021	**Mikhail Ruslanovich SOLODOVNIKOV** 2002	Dubrovina Marina Alekseyevna Novorossiysk	Manifestation in support of Navalnyy Novorossiysk 31/01/2021	article 20.2.2 § 1 of CAO	fine of RUB 10,000	Krasnodar Regional Court 22/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Krasnodar Regional Court, 22/03/2021	3,500
29.	49711/21 17/09/2021	**Nadezhda Viktorovna LYYUROVA** 1967	Kosnyrev Vladislav Vladimirovich Syktyvkar	Manifestation in support of Navalnyy Syktyvkar 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Komi Republic 17/03/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 2.00 p.m. to 9.30 p.m. on 31/01/2021 for the sole purpose of drawing up an administrative offence record, no evidence that it could not have been done on the spot, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]
								proceedings - Final decision: Supreme Court of the Komi Republic, 17/03/2021	
30.	49918/21 21/09/2021	**Yelena Vyacheslavovna TSOVINA** 1964	Vasilyev Nikolay Vladimirovich Moscow	Demonstration against the destruction of a park Moscow 27/09/2020	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 22/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 22/03/2021	3,500
31.	50123/21 23/09/2021	**Konstantin Mikhaylovich VOROVICH** 1991	Shindyapin Arkadiy Vitalyevich Moscow	Manifestation in support of Navalnyy Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 27/05/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 2.30 p.m. on 31/01/2021 to 01/02/2021 for the sole purpose of drawing up an administrative offence record and bringing the applicant to the court hearing, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 27/05/2021	4,000
32.	50154/21 23/09/2021	**Yekaterina Vladimirovna ZUBKOVA** 1969	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation in support of Navalnyy Ukhta 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Republic of Komi 31/03/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrested at about 1 p.m. on 31/01/2021 and held at a police station for more than 4 hours, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 31/03/2021	4,000
33.	50163/21 23/09/2021	**Stepan Glebovich PYANYKH** 1994	Shindyapin Arkadiy Vitalyevich Moscow	Manifestation in support of Navalnyy Moscow	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 27/05/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 2.30 p.m. to 9 p.m. on 31/01/2021 for the sole purpose of drawing up an administrative offence record and bringing the applicant to the court hearing, raised on appeal,	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]
				31/01/2021				Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 27/05/2021	
34.	50219/21 24/09/2021	**Alina Aleksandrovna KOLESOVA** 1998	Dubrovina Marina Alekseyevna Novorossiysk	Manifestation in support of Navalnyy Pyatigorsk 31/01/2021	article 20.2.2 § 1 of CAO	fine of RUB 10,000	Krasnodar Regional Court 24/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Krasnodar Regional Court, 24/03/2021	3,500
35.	50225/21 23/09/2021	**Sergey Aleksandrovich KALINKIN** 1987	Zinovyev Konstantin Mikhaylovich Nizhniy Novgorod	Manifestation in support of Navalnyy Nizhniy Novgorod 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 12,000	Nizhniy Novgorod Regional Court 24/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Nizhniy Novgorod Regional Court, 24/03/2021	3,500
36.	50546/21 24/09/2021	**Aleksey Leonidovich SIVAKS** 1983	Seleznev Stanislav Aleksandrovich Samara	Manifestation in support of Navalnyy Samara 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Samara Regional Court 22/04/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 2.05 p.m. to 4.40 p.m. on 31/01/2021 for the sole purpose of drawing up a record of administrative offence, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Samara Regional Court, 22/04/2021	4,000

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37.	50609/21 29/09/2021	**Vladimir Andreyevich IVANOV** 1984	Dubrovina Marina Alekseyevna Novorossiysk	Manifestation in support of Navalnyy Anapa 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Krasnodar Regional Court 29/03/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 2.30 p.m. to 8.10 p.m. on 23/01/2021 for the sole purpose of drawing up an administrative offence record, no evidence that it could not have been done on the spot, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Krasnodar Regional Court, 29/03/2021	4,000
38.	51115/21 01/10/2021	**Yelena Vladimirovna ORLOVA** 2000	Sirosh Fedor Yevgenyevich Moscow	Manifestation in support of Navalnyy Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 13,000	Moscow City Court 02/04/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 7 p.m. on 23/01/2021 to 24/01/2021 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 02/04/2021	4,000
39.	51119/21 01/10/2021	**Dmitriy Iosifovich KUZICHEV** 1984	Sirosh Fedor Yevgenyevich Moscow	Manifestation in support of Navalnyy Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 02/04/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 7 p.m. on 23/01/2021 to 24/01/2021 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 02/04/2021	4,000

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40.	51295/21 29/09/2021	**Erik Eduardovich RAY** 1999	Memorial Human Rights Centre Moscow	Manifestation in support of Navalnyy Moscow 03/02/2021	article 20.2 § 6.1 of CAO	administrative detention of 10 days	Moscow City Court 08/02/2021 (received on 30/03/2021)	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 0.15 p.m. to 4.00 p.m. on 03/02/2021 for the sole purpose of drawing up an administrative offence record, no evidence that it could not have been done on the spot, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 08/02/2021 (received on 30/03/2021), Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the applicant started serving his sentence – administrative detention – before the appeal judgment was delivered	5,000
41.	51676/21 24/09/2021	**Yekaterina Vladimirovna OKONOVENKO** 1996	Sidelnikova Polina Aleksandrovna Vladivostok	Manifestation in support of Furgal Vladivostok 18/07/2020	article 20.2 § 5 of CAO	fine of RUB 10,000	Primorye Regional Court 29/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Primorye Regional Court, 29/03/2021	3,500
42.	51761/21 15/10/2021	**Maksim Pavlovich RODIONOV** 1980	Zhdanov Ivan Yuryevich Vilnius	Manifestation in support of Navalnyy Vladimir 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Vladimir Regional Court 27/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Vladimir Regional Court, 27/04/2021	3,500

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43.	51776/21 15/10/2021	**Kirill Viktorovich KUZNETSOV** 1997	Zhdanov Ivan Yuryevich Vilnius	Manifestation in support of Navalnyy Kazan 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 28/04/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 1.20 p.m. on 31/01/2021 to 01/02/2021 until the court hearing for the sole purpose of drawing up an administrative offence record, no evidence that it could not have been done on the spot, raised on appeal	4,000
44.	52037/21 13/10/2021	**Aleksey Valeyevich AYSIN** 1991	Valenkov Andrey Olegovich Nizhniy Novgorod	Manifestation in support of Navalnyy Nizhniy Novgorod 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 15/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Nizhniy Novgorod Regional Court, 15/04/2021	3,500

[1] Plus any tax that may be chargeable to the applicants.